

GA-HR-11

HR Investigations & Employee Cooperation

A fair, confidential process for establishing facts and the responsibilities of employees who report, witness, or respond to a workplace concern.

APPLIES TO

Gardner Academy employees and relevant staff

AUTHORITY

Labour Act 11 of 2007 sections 33 and 48; section 41 where workplace safety is concerned; Gardner Academy employment and procedural standards

01 Purpose

This policy states how employees must cooperate when the school investigates a workplace complaint, incident, safeguarding concern, policy breach, grievance, or other employment matter. An investigation gathers facts; an allegation is not proof of misconduct. The Disciplinary Code, Grievance Procedure, and Safeguarding Policy continue to apply where relevant.

02 When this policy applies

Employees may be required to participate in an authorised investigation concerning conduct, performance, attendance, safety, safeguarding, discrimination, harassment, conflict, dishonesty, property, records, confidentiality, policy compliance, or another legitimate workplace matter.

Employee duty to cooperate

Employees must cooperate in good faith with a properly authorised investigation and any reasonable, lawful instruction connected to it. This includes:

- Attending reasonably scheduled meetings and promptly explaining any genuine inability to attend.
- Answering relevant questions honestly and completely to the best of their personal knowledge.
- Clearly distinguishing what they personally saw, heard, or did from assumptions, opinions, or information received from someone else.
- Providing relevant school records, documents, messages, equipment, or other school-controlled information that is within their possession or authorised access.
- Identifying relevant witnesses or records without coaching others or coordinating accounts.
- Reviewing their statement or interview notes where provided and promptly correcting a material error or omission.
- Continuing to perform ordinary duties unless management gives a different lawful instruction.

Preserving evidence and the integrity of the process

Once an employee knows or reasonably should know that information may be relevant, the employee must not delete, alter, hide, fabricate, remove, destroy, or improperly share it. Staff must not intimidate or retaliate against a complainant or witness, pressure anyone to change an account, agree on a shared version of events, conduct a private parallel investigation, or circulate rumours. Immediate safeguarding evidence or risk must be reported without delay.

Confidentiality with lawful exceptions

Information about an investigation must be shared only with people who need it for the process, safety, support, or a lawful report. Confidentiality is not an absolute gag order. Nothing in this policy prevents an employee from obtaining confidential advice, consulting an authorised representative, reporting a safeguarding or criminal concern, making a disclosure the employee is entitled or required to make, exercising a right under the Labour Act or employment contract, or cooperating with a lawful authority.

Employee safeguards

An employee may raise a good-faith concern about the scope, relevance, privacy, timing, or lawfulness of a request and may seek confidential advice or authorised representation. Employees are not required to admit misconduct, waive a legal right, or provide unrelated private information. A concern about a request does not excuse silence: the employee must raise it promptly and continue cooperating with the parts that are reasonable and authorised.

07 Interviews and representation

An employee must attend a reasonably scheduled interview or promptly explain a genuine inability to attend. The employee may ask whether they are participating as a complainant, witness, or person whose conduct is under review and may request the general purpose of the meeting. If the matter proceeds to a disciplinary hearing, the formal notice, preparation, response, and representation rights in the Disciplinary Code apply.

08 Non-cooperation, dishonesty, and retaliation

An unexplained refusal to follow a reasonable and lawful instruction, deliberate dishonesty, evidence tampering, intimidation, coordinated accounts, or retaliation may itself be misconduct. Employees must give any explanation or objection promptly and honestly through the investigation process. A good-faith report is not misconduct merely because another person disputes it.

09 After participation

Employees must continue ordinary duties unless instructed otherwise, maintain confidentiality, preserve relevant information, and follow any lawful next-step instruction. Participation does not entitle an employee to another person's confidential employment information.